

In J. 8/18 the appeal fee had been paid twice: once the reduced amount (for SMEs) and once the regular amount. The latter was refunded. A notice from the EPO suggested that it was enough, to benefit from the reduced fee for appeal, if the appellant simply declared that it was a SME at the latest by the time of payment of the reduced fee. Although not binding on the Legal Board, the notice of the EPO could, at least based on the principle of protection of the legitimate expectations, be relied on by the appellant in assuming that its appeal would either be deemed filed or admissible following the refund of the regular appeal fee before the file was transferred to the boards of appeal. See also J. 10/20, in which the board held that users could rely on the information on the extension of time limits provided in the notices of the EPO without suffering any disadvantages. This was so regardless of whether there was in fact a dislocation in the delivery or transmission of mail due to COVID-19, in the sense of R. 134 EPC (on which the relevant notice was based).

3.4. Information provided by telephone

In T. 160/92 (OJ 1995, 35) the board did not deny that the principle of legitimate expectations should govern all the actions of EPO employees towards parties to the proceedings, including telephone conversations which were not provided for in the EPC and did not, as such, form part of the formal procedure before the EPO. However, since telephone conversations did not form part of the said formal procedure, the board did not consider it necessary to conduct a detailed investigation seeking to clear up what had been said in the relevant telephone conversations, the sequence of procedurally relevant facts having been clearly established in the file.

In T. 428/98 (OJ 2001, 494) the board held that an appellant might rely on information which the board's registrar could be proved to have provided by telephone concerning the method for calculating a time limit the appellant had to observe before the board if the point of law on which that information was based had at that time not yet been clarified in the case law of the boards of appeal.

In T. 1785/15 the appellant had been led to believe in a telephone conversation with a formalities officer that an appeal against the decision to grant would be possible. The board held that the appeal was inadmissible. Suggesting a legal remedy where there was none was at best misleading. The board considered it was likely that the applicant had filed the appeal based on incorrect advice from the Office. The applicant thereby had at least a legitimate expectation that the appeal would be found admissible and examined as to its substance, which led the board to order the reimbursement of the appeal fee.

3.5. Decisions of the department of first instance

In T. 1448/09 the board held that the appellant was not at fault in failing to address, in its statement of grounds of appeal, a reason which, in the circumstances, could genuinely have been misunderstood. The principle of good faith required adverse decisions not to contain any ambiguity that could affect their comprehensibility.

3.6. Correction of already issued decision

In T 1081/02 the board held that the communication issued by the opposition division's formalities officer during the period for appeal, stating that the decision already issued had been sent by mistake and should therefore be disregarded, could not constitute a legally sound basis for regarding the decision's validity as so doubtful that it could be considered void. According to the applicable principle of the protection of legitimate expectations, however, the parties could not be deemed to have failed to comply with the time limit for filing a notice of appeal (Art. 108 EPC) (see also T 1176/00, T 466/03).

In T 830/03 the opposition division had issued a second written decision together with a communication which suggested that the first written decision was superseded. The opponent filed a notice of appeal outside the period of four months after the date of the notification of the first decision, but within the time limit after the notification of the second decision. The board held that the only legally valid written decision was the first decision but that, in application of the principle of protection of legitimate expectations, the appeal was deemed to have been filed in time (see also T 993/06).

In T 124/93 the opposition division, after having delivered its decision, re-delivered the same with an additional enclosure under a new mailing date. This had misled the parties about the time limit for filing the notice of appeal and statement of grounds. Applying the principle of the protection of legitimate expectations, the board ruled that the appeal was to be considered as filed in due time (see also T 130/07, T 972/05).

In T 105/11 the examining division, following a request of the applicant, had re-issued the written decision, in corrected form, with a new date. The board established that the date of the notification of the decision refusing the application remained the date of notification of the first written decision. Whilst the notice of appeal was received in time, the statement of grounds of appeal was not. The professionally represented appellant, who had explicitly requested that the written decision be corrected, should have been aware that the second decision intended to correct the first written decision under R 140 EPC. Moreover, different from other cases, in the case in hand there had been no explicit statement by the EPO that the first decision was to be ignored. Nevertheless, it was still imputable to the EPO that the second written decision had not been correctly and unambiguously identified as being a correcting decision. The board held, in application of the principle of the protection of legitimate expectations, that the statement of grounds of appeal was deemed to have been filed in time.

3.7. Information provided in the Guidelines

The board in T 1607/08 recalled that the Guidelines published by the EPO were one of the sources of legitimate expectations. Therefore, where the Guidelines gave the clear indication that the continuation of the opposition proceedings had to be communicated to the patent proprietor, the latter was entitled to expect that such information would be given before a decision on the substantive issues was issued. Otherwise, as in the case in hand, the decision to revoke the contested patent would come as a surprise to the patent proprietor.

4. Obligation to draw attention to easily remediable deficiencies

4.1. General principle

In accordance with the principle of good faith, the EPO is obliged to warn users of the European patent system of omissions or errors which could lead to a final loss of rights. A warning would always be necessary when one could be expected in all good faith (G 2/97, OJ 1999, 123). This would presuppose that the deficiency could be **easily identified** by the EPO and the applicant was in a position to **correct the deficiency** and thereby avoid the impending loss of rights (J 13/90, OJ 1994, 456). In other words, the EPO can only be expected to warn a party of a deficiency if the deficiency is readily identifiable by the EPO, and the party can still correct it within the relevant time limit (G 2/97, J 13/11, T 703/19).

The principle of good faith does not impose an obligation to warn a party of deficiencies **within the area of the party's own responsibility** (G 2/97; see in this chapter III.A.4.3.1).

4.1.1 Deficiency correctable within the relevant time limit

In J 13/11 the appellant requested re-establishment in respect of the time limit for paying the third renewal fee on the last day for doing so and after EPO office hours. The board held that there was no time for the EPO to warn the appellant about the non-payment of the third renewal-fee and surcharge even if the EPO had been in a position to spot this deficiency. The board distinguished the case in hand from T 14/89 (OJ 1990, 432) (on which see G 2/97) where the EPO had had ample time, about six weeks before the expiry of the time limit for requesting re-establishment, in which to inform the proprietor of the deficiencies of his request. See T 1633/18 and T 703/19 for examples of cases in which the board held that the relevant party would still have had time to correct the deficiency at issue if it had been informed of it.

See also T 1764/08 (concerning the electronic filing of the notice of appeal on the last day of the time limit) and the cases referred to therein, in this chapter III.A.4.2.3. See also in this chapter III.A.4.2.2 (missing or insufficient fee payments).

4.1.2 Obligation to set new time limit

The Legal Board held in J 13/90 (OJ 1994, 456) that if the applicant could expect to receive a communication warning him of an impending loss of rights, but that communication was not issued in due time, the EPO must set a new period allowing the applicant to remedy the deficiency and perform the omitted procedural act in due time (see also T 14/89). However, this only applies to non-absolute time limits, as an absolute time limit (such as the one year time limit under Art. 122(2), third sentence, EPC 1973, now R. 136(1) EPC), by definition, is non-extendable (J 34/92, but see also J 6/08).

4.2. Examples of cases addressing the obligation to draw attention to easily remediable deficiencies

4.2.1 Language issues

In J 3/00 the appellant filed an international patent application at the EPO as receiving Office under the PCT (RO/EPO). The description and claims were filed, by mistake, in Swedish, a language which the RO/EPO did not accept for filing international applications. The board held that this deficiency in the application was immediately and readily identifiable by the receiving Office on the face of the application in the course of the Art. 11(1) PCT check. The appellant could in good faith have expected a warning.

In T 1152/05 the notice of appeal was filed in Dutch and thus not in one of the official language of the EPO; this document was, in accordance with Art. 14(4) EPC, deemed not to have been filed. In the board's view, there was prima facie no reason for the formalities officer to consider that the patent proprietor would not be entitled to file its notice of appeal in Dutch. As the deficiency was not readily identifiable, the EPO was not obliged to warn the patent proprietor of the fact that it could not benefit of the provisions of Art. 14(4) EPC.

In T 41/09 the appellant (patent proprietor), a legal entity having its principal place of business in Spain, filed the notice of appeal in Dutch. The appellant argued before the board that, since the EPO was aware of its nationality, the language deficiency was readily identifiable. The board held that there was no breach of the principle of legitimate expectations of the appellant. It distinguished the situation in the case in hand from the facts of J 13/90. In this decision, the deficiency had been readily apparent from the request itself whereas in the case in hand it was not readily apparent from the notice of appeal, which only referred to the name of the appellant, without any indication of the location of its principal place of business.

See also the following cases, in which the notice of appeal was filed by a Swiss company in Dutch: T 642/12 (appeal was deemed not to have been filed) and T 595/11, T 1037/11, T 2554/11, T 707/12 (appeal was deemed to have been filed and considered admissible).

4.2.2 Missing or insufficient fee payments

J 2/94 involved a letter comprising a request for re-establishment without the necessary payment. According to the board the appellant could not have expected to be informed of the missing fee immediately after receipt of his request for re-establishment by the EPO. There had been no evident indication in the appellant's submission which made a clarification or reminder necessary. Indeed, the EPO could, in practice, often establish whether a specific fee had been paid only after the relevant time limit had expired, once the complete data on all payments made during that period was available (see also T 1815/15).

In G 2/97 (OJ 1999, 123) the Enlarged Board of Appeal held that the principle of good faith did not impose any obligation on the boards of appeal to notify an appellant that an appeal fee was missing when the notice of appeal was filed so early that the appellant could react

and pay the fee in time, if there was no indication – either in the notice of appeal or in any other document filed in relation to the appeal – from which it could be inferred that the appellant would, without such notification, inadvertently miss the time-limit for payment of the appeal fee.

Prior to G 2/97, the boards had held in a number of decisions that the EPO had a duty to warn the parties of missing or insufficient fee payments. These included T 14/89 (OJ 1990, 432), J 13/90 (OJ 1994, 456), J 15/90 of 28 November 1994 and T 923/95. The Enlarged Board held with regard to T 14/89 that the case turned on its particular facts and that there was no generally applicable principle to be derived therefrom. The board in T 642/12 suggested that the approach in T 923/95 was no longer tenable as it plainly contradicted the findings of G 2/97.

In T 296/96, only 50% of the appeal fee was paid before the expiry of the time limit under Art. 108, first sentence, EPC 1973. However, since the formalities officer invited the appellant to pay the remainder of the appeal fee and accepted its subsequent payment without comment, the appellant could assume in all good faith that the appeal was deemed to have been filed (Art. 108, second sentence, EPC 1973) and that, as a consequence, it was not necessary to file a request for re-establishment. The appellant, who was misled by the action of the formalities officer, must, in accordance with the principle of the protection of legitimate expectations, be treated as having paid the appeal fee in time.

In T 161/96 (OJ 1999, 331) the board came to the conclusion that there was no basis for assuming an obligation on the part of the EPO to warn the party of an impending loss of rights relating to an underpayment of 40% of the opposition fee.

In T 445/98 the board considered that, because the department which cashed the fee was not the same as the one which received the notice of appeal, the deficiency was not easy to identify and the time between payment of the appeal fee and expiry of the non-observed two-month time limit for filing the notice of appeal was too short, so that the opponent could not expect a warning.

In T 642/12 the board held that a potential possibility of discovering the error (80% instead of 100% of the appeal fee had been paid) was not sufficient to establish the legitimate expectation that a registrar of the boards of appeal would warn an appellant within seven working days before the expiry of the time limit that a reduced appeal fee had been relied on in error. The appeal fee was thus deemed not to have been paid (but see T 595/11 in this chapter III.A.2.2.3). See also T 2422/18 and T 1060/19 on payment of a reduced fee by persons not fulfilling the criteria of the relevant notice from the EPO dated 18 December 2017 (OJ 2018, A5).

In T 703/19 the board considered that EPO users could legitimately expect a plausibility check to be carried out on the filing of an appeal. On filing its notice of appeal, the appellant had stated in it that the appeal fee had thereby been paid via the Online Fee Payment service. The letter accompanying subsequently filed items, however, contained information on the kind of fees and the amount payable but nothing on the method of payment, for which "not specified" appeared. The bank account number was missing too.